



Notification Waiver Determination

Triton – United Initiators

Acquisition	Unna BidCo GmbH (BidCo), a special purpose vehicle indirectly controlled by Triton Fund 6 GP SARL, applied for a notification waiver in respect of its proposed acquisition of all shares in United Initiators Holding GmbH, United Initiators GmbH and Bayern Acquisition LLC and each of their direct and indirect subsidiaries (together, United Initiators), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 September 2026

Parties to the Acquisition	Triton Fund 6 GP SARL in its capacity as general partner of Triton Fund 6 SCSp, together with a number of other limited partnerships, form part of Triton Fund 6. Triton Fund 6 is one of the investment funds managed and advised by entities being part of the Triton group (Triton). Triton is a private equity investment firm dedicated to investing in medium-sized businesses headquartered in Central and Northern Europe, with a particular focus on three core sectors: Business Services, Industrial Tech and Healthcare. United Initiators is a global manufacturer of active oxygen chemicals used as initiators in the polymerisation process. Specifically, United Initiators manufactures and supplies (i) organic peroxides, (ii) persulfates, and (iii) hydrogen peroxide. United Initiators also supplies a limited range of accelerators and inhibitors used in the curing of unsaturated polyester resins. United Initiators is headquartered in Pullach, Germany, and operates several manufacturing sites globally. United Initiators' products are used by customers across the polymer industry, serving a range of end uses, including consumer goods, housing and infrastructure, transportation, sustainable technologies, textile and paper, and health and cosmetics.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. there is no horizontal overlap between Triton (or its connected entities) and United Initiators in Australia b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act